

TENTATIVE RULING

Clorinda Russo
vs.
MV Transportation, Inc., et al.
26CV000879

Plaintiff's Motion for Trial Preference

Hearing Date: September 18, 2026

The motion of Plaintiff Clorinda Russo, by and through her guardian ad litem, Gina Mineo ("Plaintiff"), for trial preference is **GRANTED**, and the October 23, 2026, hearing on that motion is **VACATED**. Further, **PARTIES TO APPEAR** at the Further Case Management Conference ("CMC") following the motion hearing.

Plaintiff has shown she is entitled to a trial preference under Code of Civil Procedure section 36, subdivision (a). First, Plaintiff is 92 years old. [Gladin-Kramer Decl. at ¶ 2; Code Civ. Proc. § 36, subd. (a).] Second, it is undisputed that Plaintiff is the sole claimant and therefore has a substantial interest in this action. [Gladin-Kramer Decl. at ¶ 4; Code Civ. Proc. § 36, subd. (a)(1).] Third, Plaintiff's counsel, pursuant to Code of Civil Procedure section 36.5, detailed Plaintiff's frail health and numerous medical conditions. [Gladin-Kramer Decl. at ¶¶ 5-6.] Nothing more is needed. [*Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 534.] Thus, given Plaintiff's age and condition, a preferential trial setting is necessary to allow her to participate in this litigation while her health permits. [Gladin-Kramer Decl. at ¶ 8; Code Civ. Proc. § 36, subd. (a)(2).]

The trial is scheduled for January 11, 2027, at 8:30 a.m. in Department 14. Trial continuances are disfavored, may be granted only upon an affirmative showing of good cause, and are subject to Code of Civil Procedure section 36, subdivision (f). Trial counsel for each party shall meet and confer before trial to review exhibits, potential witnesses, and stipulations; exchange trial motions; and ensure compliance with the Court's order. [Super. Ct. Monterey County, Local Rules, rule 6.11.] Failure to meet and confer may result in sanctions under Code of Civil Procedure section 575.2. [*Ibid.*]

The Trial Management Conference is scheduled for January 8, 2027, at 10:30 a.m. in Department 14. By 3 p.m. on January 4, 2027, the parties shall file, serve, and provide courtesy chambers copies of all trial management reports, briefs, and motions in limine. [Super. Ct. Monterey County, Local Rules, rule 6.11.] The attorneys shall prepare a trial management report and a brief as set forth in Appendix A of Chapter 6 of the Local Rules.

A Mandatory Settlement Conference is scheduled for December 8, 2026, at 1:30 p.m. in Department 14 for assignment. All individuals with settlement authority must appear in person. Statements shall be filed pursuant to Local Rule 6.13 and California Rules of Court, rule 3.1380.

The CMC is **MAINTAINED**. The parties should be prepared to discuss whether expediting certain deadlines, such as discovery and summary judgment motions, is appropriate. The Court is aware that the parties have actively pursued discovery for several months. Additionally, the Court cannot reduce the 81-day notice period mandated by Code of Civil Procedure section 437c without the parties' explicit consent. [*McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 117-118.] The parties might also consider whether electronic service of pleadings, motions, and discovery should be treated as equivalent to personal service, which could render the two-court-day extension under section 1010.6 inapplicable. Any such stipulation should exclude the time for filing or service of a notice of intention to move for a new trial, a notice of intention to move to vacate a judgment under section 663a, or an appeal. Regardless, before the September 18 CMC, the parties should meet and confer in good faith about the issues arising from the limited time for trial preparation due to the trial preference grant.

Plaintiff shall prepare the Proposed Order consistent with this Tentative Ruling.

NOTE REGARDING TENTATIVE RULING

This tentative ruling becomes the Court's order, and no hearing shall be held unless a party contests. [Cal. Rules of Ct., rule 3.1308; Super. Ct. Monterey County, Local Rules, rule 7.9.] The party wishing to present oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT, AND THE HEARING WILL BE VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.